

26STCV03294 26STCV03294

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MOTIONS TO COMPEL

The Court

tenders the following tentative decision in the matter Scott Wiseman v. Edwin Ortiz, et al., Los Angeles County Superior Court case number 26STCV03294, set for hearing on August 31, 2026. Edwin Ortiz and Gander & White Shipping, Inc. (collectively, Defendants) move for orders compelling further responses to the following discovery requests propounded on Scott Wiseman (Plaintiff): (1) form interrogatories, set one (FROGs); (2) requests for production of documents, set one (RFPs); and (3) special interrogatories, set one (SPROGs). Defendants also request a total \$4,160 in monetary sanctions. Plaintiff opposes the motions. Defendants' motions to compel further responses are granted in part. The Court awards \$780 in sanctions.

A.

Legal Standard

A party may move for an order compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A party may also move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

B. Discussion

Defendants propounded the relevant discovery on March 3, 2026. (Teja Decl. ¶ 4.) Plaintiff served initial, allegedly deficient, verified responses on May 22, 2026, after being granted multiple extensions. (Id. ¶ 5.) The parties met and conferred throughout June and July, with Defendants inquiring as to whether Plaintiff would be amenable to an informal discovery conference. (Id. ¶¶ 6–7.) Counsel never responded, with Defendants attempting a final communication on July 8. (Id. ¶¶ 7–8.) Defendants filed the present motions that same day.

As a threshold matter, Plaintiff argues that the present motions should be continued and the parties ordered to participate in an informal discovery conference based on a previous order of the Court. However, that order merely suggested that the parties participate in a discovery conference. Indeed, Defendants offered to do so, but Plaintiff never accepted. Thus, nothing prevented Defendants from filing the present discovery motions.

Plaintiff must provide further responses to FROGs 2.8, 6.5, 6.6, and 10.2.

Defendants argue that Plaintiff’s responses to FROGs 2.8, 6.5, 6.6, and 10.2 are deficient. FROG 2.8 asks Plaintiff if he has ever been convicted of a felony, and if so where and when. Plaintiff objects on the grounds that the information was irrelevant, a matter of public record, and an invasion of privacy. These objections are overruled: the information is relevant as impeachment evidence, and Plaintiff’s objections based on the information being both public record and private are inconsistent.

FROGs 6.5 and 6.6 ask Plaintiff to identify if he has taken any medication or obtained any medical services because

of injuries attributable to the collision at issue in this case. Plaintiff objects on the grounds that responding would require him to make a compilation of documents he is providing in response to Plaintiff's RFPs. (Code Civ. Proc., § 2030.230.) These objections are overruled: Plaintiff has not "specif[ied] the writings from which the answer may be derived or ascertained," as required under that section, referring only to general medical records produced.

FROG 10.2 asks Plaintiff to list all disabilities he had immediately before the collision. Plaintiff objects on the grounds that the interrogatory calls for a professional opinion from a lay witness. A lay witness may provide opinion testimony rationally based on their perception and helpful to a clear understanding of their testimony. (Evid. Code, § 800.) The objection is overruled: Plaintiff may describe from which disabilities he suffered rationally based on his own perception. Accordingly, Defendants' motion to compel further responses to FROGs is granted in full.

Plaintiff must provide further responses to SPROGs 2, 3, 10, 25–27, 33, 66 and 67 only.

Defendants argue that Plaintiff's responses to SPROGs 2, 3, 10, 23, 25–27, 33, 63, 66 and 67 are evasive, incomplete, and noncompliant. (Code Civ. Proc., § 2030.300.) SPROG 2 asks Plaintiff to list all other lawsuits he has been a party to. Plaintiff objects on the grounds that the information is irrelevant, a matter of public record, and an invasion of privacy. These objections are overruled: the information is relevant as impeachment evidence, and Plaintiff's objections based on the information being both public record and private are inconsistent.

SPROGs 3 and 23 ask Plaintiff to describe all other automobile accidents in which he has been involved in the last 10 years and to list the total amount of medical expenses he has incurred as a result of this collision. Plaintiff objects to both SPROGs on the grounds that they have been asked and answered in Defendants' FROGs and are thus unduly burdensome, oppressive, and harassing. These objections are overruled with respect to SPROG 3: the FROGs asked Plaintiff to disclose any claims he had filed regarding automobile accidents, not the accidents themselves. The objections are sustained with respect to SPROG 23, however: the FROGs already asked Plaintiff to disclose medical expenses, and Defendants can total those amounts themselves.

SPROG 10 asks Plaintiff to identify

any medical bills not sent to his insurance. Plaintiff objects on the grounds that the interrogatory is not relevant. This objection is overruled: Defendants may seek potential medical expenses not covered by insurance to determine how much damages are being claimed.

SPROGs 25–27 and 33 ask Plaintiff

to identify the medical providers from whom he obtained x-rays, MRIs, or other medical testing of relevant body parts prior to the collision, as well as all providers who generally treated him in the 10 years prior to the collision.

Plaintiff objects on the grounds that these requests are overbroad, oppressive, harassing, and barred by the physician-patient privilege. These objections are overruled: Plaintiff has put his medical history at issue by claiming damages related to physical injury. Indeed, an exception to the physician-patient privilege exists if the relevant issue has been tended by the patient. (Evid. Code, § 996, subd. (a).)

SPROG 63 asks Plaintiff to identify

all income he has earned since the collision. Plaintiff objects on the grounds that this information is irrelevant and protected by his privacy rights. This objection is sustained: Plaintiff is not claiming damages related to lost income or earning capacity; thus, this information is irrelevant.

SPROGs 66 and 67 ask Plaintiff to

identify any agreements he entered into with third parties to obtain financial assistance in exchange for an interest in the recovery in this action and any documents related to those agreements. Plaintiff objects on the grounds that such information is irrelevant. This objection is overruled: such information can demonstrate the bias of medical providers and is thus relevant. Accordingly, Defendants' motion to compel further responses to SPROGs is granted in part: Plaintiff must provide further responses to SPROGs 2, 3, 10, 25–27, 33, 66 and 67 but not 23 and 63.

Plaintiff must provide further

responses to RFPs 32 and 33 only.

Defendants argue that Plaintiff's

responses to RFPs 5, 32, and 33 are deficient. RFP 5 seeks Plaintiff's income records from 2 years before the collision to the present day. Plaintiff objects on the grounds that this information is irrelevant and protected by his privacy

rights. This objection is sustained: Plaintiff is not claiming damages related to lost income or earning capacity; thus, this information is irrelevant.

RFPs 32 and 33 ask Plaintiff to provide all photographs taken during vacations and leisure activities referenced in his responses to SPROGs. Plaintiff objects on the grounds that such information is irrelevant and an invasion of privacy. These objections are overruled: Plaintiff has not identified a legal basis for the privacy right, and photos from Plaintiff's vacations and leisure activities are relevant to determining the extent of his physical and emotional injuries. Accordingly, Defendants' motion to compel further responses to RFPs is granted in part: Plaintiff must provide further responses to RFPs 32 and 33 but not 5.

Defendants are awarded partial monetary sanctions.

Sanctions may be awarded where a party unsuccessfully opposes a motion to compel further responses, provided that the party does so without substantial justification. (Code Civ. Proc., §§ 2030.300, 2031.310.) Here, Plaintiff was partially successful in his opposition to Defendants' motions regarding SPROGs and RFPs, but unsuccessful with respect to the FROGs motion. Additionally, the Court does not find that Plaintiff acted with substantial justification in opposing the FROGs motion. Thus, sanctions are warranted pursuant to section 2030.300, subdivision (d), with respect to that motion only.

Counsel testifies to an hourly rate of \$260, which the Court credits. (Teja Decl. ¶ 14.) Counsel additionally alleges 10 hours spent drafting the three motions and 6 hours preparing the reply. The Court finds these estimates unreasonable, instead crediting counsel with 2 hours for drafting the FROGs motion and 1 hour drafting the reply brief. Accordingly, the Court awards Defendants sanctions in the amount of \$780 ($[\$260 \text{ per hour}] \times [3 \text{ hours}] = \780).

C. Conclusion

The Court grants Defendants' motions in part. Plaintiff must provide further responses to FROGs 2.8, 6.5, 6.6, and 10.2, SPROGs 2, 3, 10, 25–27, 33, 66 and 67, and RFPs 32 and 33 within 30 days. Defendants are awarded sanctions in the amount of \$780.